

MEMORANDUM OF AGREEMENT
BETWEEN
SEATTLE PARKS AND RECREATION
AND
SEATTLE DEPARTMENT OF FINANCE AND ADMINISTRATIVE SERVICES
FOR
STAFFING TO SUPPORT "MAKING PARKS SAFER" INITIATIVE

1. INTRODUCTION

This Memorandum of Agreement ("Agreement") is made by and between Seattle Parks and Recreation ("SPR") and the Department of Finance and Administrative Services ("FAS"), representing its Seattle Animal Shelter ("Shelter or SAS") within the Administrative Business Unit (ABU). This agreement addresses scope of work, invoicing and billing, and reporting for the Making Parks Safer initiative, one of the component elements of the broader Maintaining Parks and Facilities initiative funded by the Seattle Park District ("Park District").

This Agreement is for the funding by SPR, through the Park District, of a 1.0 FTE Animal Control Officer II ("ACO") who is employed by the Shelter. The ACO will work in a team with a Facilities Maintenance Worker ("FMW") employed by SPR. (The term "the ACO" encompasses the possibility that more than one ACO may perform the work program defined here.) The team's work program is to educate the public and enforce dog leash and scoop laws at SPR park locations, especially those locations with a history of complaints, violations and impacts to users and/or natural resources based on park users' non-compliance with these laws.

2. TERM OF AGREEMENT

The term of this Agreement shall begin when fully executed by all parties and shall end on December 31, 2022, unless amended by written agreement or terminated earlier. This term is shorter than the prior five-year MOA given the unprecedented circumstances and impacts of the COVID-19 pandemic although it is anticipated that the work program described in this Agreement will continue for the remainder of the five years of this Park District funding cycle and that the parties will mutually amend or renegotiate this Agreement on an as-needed basis.

3. BILLING AND PAYMENT

During the term of this Agreement, SPR will reimburse FAS for 80 hours/pay period at the top rate of pay including Annual Wage Increases (AWI), and an additional 45% for all employee benefits. Overtime is not included unless pre-authorized by SPR. The ACO II will remain on the FAS payroll and code hours worked to a project code. Timesheets for the FMW will be approved by the SPR supervisor and timesheets for the ACO will be approved by the SAS Field Services Supervisor.

In addition, SPR will reimburse FAS program and supply costs of \$3000 and divisional overhead of \$19,000.

FAS will submit quarterly requests for payment to SPR via a pre-established interdepartmental journal entry set up where FAS's expenses, along with back up spreadsheet of these costs will be charged to SPR's PS 9.2 activity code.

4. WORK SCHEDULE

The typical work schedule described in this Agreement will take place on a Wednesday through Saturday or Sunday through Wednesday schedule. Work hours will vary by season and programmatically, based on high-use times and in order to maximize the number of daylight hours the team can spend in parks. The typical hours will be 0900 to 1900 during daylight savings time and 0600 to 1600 when daylight savings ends. The team may need to flex their hours to attend community meetings to discuss parks related topics. The ACO and FMW will either report to or meet at the Shelter and then depart for the day's planned itinerary or alternatively, by mutual agreement, at a SPR's maintenance facility in a location determined to suit the needs of the program. The FMW and ACO will share driving responsibilities of both FAS and SPR vehicles and each program team member shall have a key for the vehicle being used that day. Repairs of damage to department vehicles will be the responsibility of the department of the driver when the damage occurred. The ACO and the FMW will spend the majority of their shift engaged in the work described in this agreement, including the time spent to travel to and between parks and to return to either the Shelter or other designated location at the end of their shift. An exception will be for department or program required trainings, meetings and other designated events.

Note – Due to the variable, fluid, and unprecedented impacts of the COVID-19 pandemic staffing needs with both SPR and SAS may require modification of this work schedule during the term of this Agreement. If SPR and/or SAS are unable to meet the requirements listed above the SAS manager of field services and the SPR security supervisor shall provide written notification of the reason and expected resumption of work schedule.

5. SCOPE OF WORK

While they work as a team, the ACO and the FMW will seek to educate park users and promote compliance with all applicable animal-control laws in SPR parks. Enforcement of these laws is within the purview of the Shelter, and the ACO will have the discretionary authority to issue citations for non-compliance. It is anticipated, however, that the work program will be primarily educational and that park users' observation of the ACO/FMW team will have a deterrent effect in terms of non-compliance. The FMW may also carry out identified or ad hoc security service in the parks; enforce the City Park Code; provide basic customer service to park users; collect information about park use, conditions, and more complex service and/or maintenance needs; and other duties as assigned. The ACO may also carry out FAS/SAS identified, or ad hoc service tasks as assigned by the Shelter leadership team; and other duties as assigned. SPR and FAS will establish guidelines by which they will create the team's work

itineraries and the degree to which these itineraries will remain flexible, for instance to respond to emergent issues and/or complaints.

6. CONDITIONS OF WORK

While in a park, the FMW and ACO will always maintain radio communication with each other with an emphasis to keep a line-of-sight contact at all times and be ready to move into close physical proximity should an interaction with a park user become charged. The FMW and the ACO should view themselves as a team, working together and communicating with each other to address issues of concern to both SPR and FAS. The ACO shall be responsible for organizing the daily patrol area and route based on complaints received by SAS. Other duties performed by this team shall be shared. SAS will process and hold all law enforcement agency copies of citations for the required retention period. SPR will be responsible for supplying the FMW with a citation book from SPD. The ACO will carry barrier equipment, which may be used as a tool or barrier to push away an aggressive animal. The FMW will carry similar protective equipment. The ACO and FMW will both carry cell phones as well as any other equipment mutually agreed to by SPR and FAS.

7. DOCUMENTATION AND REPORTING

SPR will provide the FMW with the electronic equipment needed to record the origin and type of interaction with a member of the public, the infraction observed, and the result of the interaction (e.g., patrol and incident; scoop violation; warning). SPR will also collect data on the location and time of each interaction and on each visit by the team to a single park. SPR may also collect other points of data that reasonably relate to the work program and its goal of Making Parks Safer. If the electronic means to collect data are not available due to equipment unavailability or failure, SPR will provide the FMW with the means to collect this data manually. In that case SPR will be responsible for transferring the data to the appropriate system and for returning the electronic equipment to use as soon as possible. The ACO will provide SAS management weekly data on the number of parks patrolled, tickets issued, warnings issued, pet licenses sold, and licensing warnings issued, including dollar amounts on the total number of citations and licenses sold.

Within five working days of the end of each month, SPR will provide to FAS a summary report on that month's data, which FAS will include with its invoice to SPR Accounting.

SAS will supply SPR Security with quarterly statistics including, numbers of contacts, verbal and written warnings, citation written and other pertinent information to be used as performance measures, reporting and record keeping.

8. ASSIGNMENT

This Agreement shall not be assigned in whole or in part by either party without the prior written approval of the other party.

9. COMPLIANCE WITH LAW

The parties to this agreement shall comply with all federal, state, and local laws and ordinances.

10. ENTIRE AGREEMENT

This Agreement constitutes the complete contractual agreement of the parties, and any oral representations or understandings not incorporated herein are excluded.

IN WITNESS WHEREOF, in consideration of the terms, conditions, and covenants contained herein, or attached and incorporated and made a part hereof, the parties have executed this Agreement by having their representatives affix their signatures below.

SEATTLE PARKS AND RECREATION


Jesus Aguirre (Jan 25, 2021 13:24 PST)

Jesús Aguirre
Superintendent of Seattle Parks and Recreation

Date: 01/25/2021

FINANCE AND ADMINISTRATIVE SERVICES



Calvin W. Goings
Director of Finance and Administrative Services

01/10/2021
Date: _____

Attachment A-Calculations of FAS costs-personnel and non-personnel

Annual Salary of Animal Control Officer II: Hourly wage of \$43.07 times 45% OH=\$ 62.45 per hour

\$62.45 Times 2088 hours = \$130,398.73 per annum.

Plus: \$3000 in supplies

Plus: \$19,000 for divisional overhead

For a grand Total: **\$152,398.73.**